

26NNCV00551 26NNCV00551

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Division: Civil Law and Motion

Department: X

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Case Number: 26NNCV00551 Hearing Date: July 9, 2026 Dept: X

#9 - ARTAK NAHAPETYAN, et al. vs EXCEL DENTAL LABORATORY INC., et al.

CASE MANAGEMENT CONFERENCE

Service remains outstanding on the First Amended Complaint as to Defendant Jack Chalabi and as to Cross-Defendant Excel Dental Laboratory Inc. on the Cross-Complaint filed by Defendant David S Kim DDS Corp. The Court sets an Order to Show Cause re: Proof of Service on Defendant Chalabi and Cross-Defendant Excel for August 12, 2026 at 8:30 a.m. in Department X.

The Court sets the following dates:

Final Status Conference: Thursday, August 26, 2027 at 9:00 a.m. in Dept. X.

Bench Trial: Tuesday, September 7, 2027 at 9:00 a.m. in Dept. X.

No party has posted jury fees pursuant to Code of Civil Procedure section 631.

The Court further orders the parties to comply with the Court's Trial Preparation Order, which may be found on the LASC website (<https://www.lacourt.ca.gov/home>), "Attorneys" section, under the "Courtroom Information" link for Department X (Alhambra Courthouse). Trial counsel are ordered to personally appear – in court – for the Final Status Conference with a copy of their lodged binders so that same can be reviewed in preparation for trial.

MOTION TO STRIKE

As to moving defendant David S. Kim DDS Corp., the First Amended Complaint ("FAC") alleges that it owned, leased, controlled, managed, maintained, supervised, and exercised authority over the premises, and had the ability to prohibit dangerous uses, require corrective action and code compliance, terminate occupancy, and otherwise prevent continuation of the operations. (FAC, ¶ 92.) The FAC further alleges that this defendant deliberately continued permitting the hazardous operations despite notice of the risks and continued permitting operations even after the January 10, 2026

fire. (FAC, ¶ 96.) Plaintiffs also allege they personally observed ongoing operations during an inspection on March 24, 2026. (FAC, ¶ 136.)

The Court finds that the FAC does not rely only on conclusory adjectives. The pleading sets out a specific factual theory: a hazardous flammable operation; alleged years of notice of odors and physical symptoms; alleged lack of basic fire-safety systems; an alleged fire caused by methyl methacrylate vapors igniting at an open flame; and alleged continuation of operations afterward. Those allegations go beyond just recitation of Civil Code section 3294. At the pleading stage, they are sufficient to support an inference of willful and conscious disregard rather than mere inadvertence.

Further, the allegations against David S. Kim DDS Corp. are sufficient at the pleading stage. The FAC alleges that David S. Kim DDS Corp. had authority over the premises and the ability to require corrective action, require code compliance, prohibit dangerous uses, or terminate occupancy. It also alleges that the corporation deliberately chose to continue permitting and ratifying the hazardous operations despite notice of the substantial probability of serious harm, including after the fire.

The FAC also alleges that the challenged acts and omissions were authorized, ratified, approved, directed, or carried out by officers, directors, managing agents, owners, and persons exercising substantial discretionary authority on behalf of David S. Kim DDS Corp. Ultimately, Plaintiffs will have to prove they complied with Civil Code section 3294(b). But at this stage, the Court is not persuaded that the punitive allegations fail as a matter of pleading.

The Court therefore declines to strike the punitive damages allegations. The request to strike the corresponding punitive damages prayer is also declined. Defendant is to answer the complaint within 10 days, or by July 20, 2026.

Plaintiff is to give notice.